

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS-----X
TONY URENA,

Plaintiff,

-against-

NEW YORK CITY, PO RUIZ, AND UNIDENTIFIED
NEW YORK CITY POLICE OFFICERS,Defendants.
-----X

To the above named Defendants:

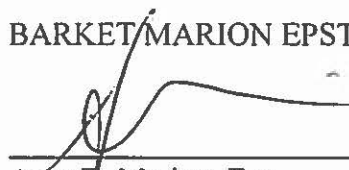
INDEX No.
Date Purchased:**SUMMONS**Plaintiff designates QUEENS
County as the Place of TrialThe basis of venue is
Plaintiff's Residence
Plaintiff resides at
104-14 37th Drive
Queens, N.Y. 11432**JURY TRIAL DEMAND**

YOU ARE HEREBY SUMMONED to answer the verified complaint in this action and to serve a copy of your answer, or, if the verified complaint is not served with this summons, to serve a notice of appearance, on Plaintiff's Attorney within twenty (20) days after the service of the summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Garden City, New York
May 6, 2015

BARKET MARION EPSTEIN & KEARON, LLP

By:



Amy E. Marion, Esq.
666 Old County Road-Suite 700
Garden City, New York 11530
(516) 745-1500**DEFENDANTS' ADDRESSES:**
THE CITY OF NEW YORK
New York City Law Department
Office of Corporation Counsel
100 Church Street
New York, NY 10007POLICE OFFICER RUIZ
ONE POLICE PLAZA
New York, New York 10038
107th Precinct
71-01 Parsons Blvd.
Flushing, NY, 11365-4113

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

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NEW YORK CITY, PO RUIZ, AND UNIDENTIFIED
NEW YORK CITY POLICE OFFICERS,

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INDEX No.
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VERIFIED COMPLAINT

Plaintiff designates QUEENS
County as the Place of Trial

The basis of venue is
Plaintiff's Residence
Plaintiff resides at
104-14 37th Drive
Queens, N.Y. 11432

JURY TRIAL DEMAND

The Plaintiff, complaining of the defendants, by his attorney, AMY MARION, ESQ., respectfully shows to this Court and alleges that she suffered abuse and sustained injury at the hands of the above defendants.

PARTIES

1. Plaintiff, TONY URENA is a resident of Kings County in the State of New York.
2. At all times hereinafter mentioned, the defendant City of New York (NYC) was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. Upon information and belief, that at all times relevant and all times mentioned herein, the defendant City of New York, its agents, servants and employees operated, maintained and controlled THE NEW YORK CITY POLICE DEPARTMENT (NYCPD), including all the police officers thereof and that NYC is vicariously liable for the violations of New York State tort law by its servants, agents and employees via the principle of respondeat superior as at all times relevant all defendant officers were acting for, upon, and in furtherance of the business of their employer and within the scope of their employment.
4. Upon information and belief, that at all times relevant and all times mentioned

herein, PO RUIZ AND UNIDENTIFIED NEW YORK CITY POLICE OFFICERS were employed by the defendant, CITY OF NEW YORK, as police officers in New York City, New York.

5. THE NEW YORK CITY POLICE DEPARTMENT, is a local governmental agency, duly formed and operating under and by virtue of the Laws and Constitution of the State of New York and the Commissioner of the NYPD is responsible for the policies, practices and customs of the NYPD as well as the hiring, screening, training, supervising, controlling and disciplining of its police officers and civilian employees.

6. This action arises under the United States Constitution of the United States, particularly under the provisions of the Fourth and Fourteenth Amendments of the Constitution of the United States, and under federal law, particularly the Civil Rights Act, Title 42 of the United States Code, Section 1983 and the rights under the Constitution and laws of the State of New York.

7. Each and all of the acts of the defendants alleged herein were performed by the defendants, their agents, servants and employees, and each of them not as individuals, but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York, the City of New York, and under the authority of their office as police officers of said state and city.

FIRST CAUSE OF ACTION

8. Mr. Urena hereby incorporates by reference all of the foregoing paragraphs and further alleges as follows.

9. That the plaintiff's rights have been violated under the Fourth and Fourteenth Amendments of the United States Constitution and pursuant to Article I Section 12 of the New

York New York State Constitution to be free from unreasonable search and seizure in that the plaintiff was falsely arrested by the defendants.

10. That the said false arrest, was caused by the defendants, their agents, servants and employees, without any legal justification to wit, without probable cause and that the defendants confined the plaintiff, defendants intended to confine the plaintiff, plaintiff was conscious of the confinement, plaintiff did not consent to confinement, and confinement was not otherwise privileged.

11. That the defendants conspired together to violate plaintiff's rights in committing the false arrest of the plaintiff.

12. That by reason of the false arrest of the plaintiff, plaintiff incurred mental anguish, emotional distress, physical pain and injury and loss of professional opportunity, loss of income, legal expenses, loss of reputation, humiliation, indignities, embarrassment, and degradation and he was otherwise injured.

SECOND CAUSE OF ACTION

13. Mr. Urena hereby incorporates by reference all of the foregoing paragraphs and further alleges as follows.

14. That the plaintiff's rights have been violated under the Fourth and Fourteenth Amendments of the United States Constitution and pursuant to Article I Section 12 of the New York New York State Constitution to be free from unreasonable search and seizure.

15. That the said acts, were caused by the Jane/John Doe defendants without any legal justification.

16. That the Defendants conspiring together caused Mr. Urena's confinement, that all of the defendants intended to confine Mr. Urena, that Mr. Urena was conscious of the

confinement, Mr. Urena did not consent to the confinement and the confinement was not otherwise privileged.

17. That the said seizure and unlawful detention was caused by all of the defendants acting together and without authority of the law and without any legal basis or probable cause to believe that Mr. Urena was in fact guilty of crimes.

18. That the said seizure and unlawful detention was caused by the defendants who acted in concert and conspired to arrest the plaintiff.

19. That by reason of the unlawful seizure, Mr. Urena incurred mental anguish, emotional distress, physical pain and injury and loss of professional opportunity, loss of income, legal expenses, loss of reputation, humiliation, indignities, embarrassment, and degradation and he was otherwise injured.

20. That by reason of the aforesaid, the plaintiff has been damaged in an amount to be determined by a jury and an award of attorney's fees is appropriate pursuant to 42 U.S.C. §1988.

THIRD CAUSE OF ACTION

21. Mr. Urena hereby incorporates by reference all of the foregoing paragraphs and further alleges as follows.

22. The defendants, despite knowing that probable cause did not exist to arrest and prosecute Mr. Urena the defendants acted individually and in concert to cause Mr. Urena to be arrested and prosecuted. The defendants' conduct violated Mr. Urena's rights pursuant to the Fourth and Fourteenth Amendments of the United States Constitution, Article I Section 12 of the New York New York State Constitution and the common law of the state of New York.

23. Specifically, defendants knew or in the absence of their deliberate and reckless indifference to the truth, should have known that probable cause did not exist to arrest and

prosecute Mr. Urena.

24. That the said malicious prosecution was initiated by the defendants without any legal justification and without probable cause in that the defendants caused the commencement and continuation of criminal proceedings against plaintiff.

25. The defendants' acts were shocking and were performed by the defendants with deliberate and reckless disregard for the truth and with malice.

26. In fact, the assault charges against Mr. Urena were dismissed.

27. As a direct and proximate result of defendants' actions, Mr. Urena was wrongly prosecuted and suffered injuries and damages as set forth above.

28. That by reason of the unlawful seizure, Mr. Urena incurred mental anguish, emotional distress, physical pain and injury and loss of professional opportunity, loss of income, legal expenses, loss of reputation, humiliation, indignities, embarrassment, and degradation and he was otherwise injured.

29. That by reason of the aforesaid, the plaintiff has been damaged in an amount to be determined by a jury and an award of attorney's fees is appropriate pursuant to 42 U.S.C. §1988.

FOURTH CAUSE OF ACTION

30. Plaintiff hereby incorporates by reference all of the foregoing paragraphs and further alleges as follows.

31. That the Plaintiff's rights have been violated under the Fourth Amendment of the United States Constitution pursuant to 42 U.S.C. § 1983, in that defendants assaulted Plaintiff.

32. It is clearly established that at the time of this assault, the defendants had fair warning that pushing, throwing down, and assaulting plaintiff was unconstitutional.

33. That by reason of this assault, Plaintiff incurred physical, emotional and

pecuniary harms, suffered humiliation, mental anguish, embarrassment, and he was otherwise injured.

34. That by reason of the aforesaid, the Plaintiff has been damaged in a sum to be determined by a jury and an award of attorney's fees is appropriate pursuant to 42 U.S.C. §1988.

FIFTH CAUSE OF ACTION

35. Plaintiff hereby incorporates by reference all of the foregoing paragraphs and further alleges as follows.

36. Upon information and belief, defendants did intentionally assault Plaintiff, placing him in fear of imminent danger and/or bodily harm, and subjected Plaintiff to great pain and physical injury by virtue of their conduct including, but not limited to, the unwarranted and unjustified assault and attack of Plaintiff.

37. As a direct and proximate result of said acts, Defendants caused Plaintiff to suffer physical injuries and damages, as well emotional injuries and damages, which were foreseeable to the Defendants at the time of their acts, and which continue to date into the future.

38. The aforesaid injuries did not result from any negligence or fault on the part of the Plaintiff herein.

39. Defendant NYC is responsible for the acts and conduct of their officers and are liable for the damages flowing from their unlawful conduct.

40. Plaintiffs additionally rely upon the doctrine of *res ipsa loquitur*.

41. At the time and place of the occurrences herein described, the individually named Defendant officers were acting in the course and scope of their employment by the defendant NYC.

42. That the defendant NYC is liable for the acts of the individually named

Defendants under the doctrine of *respondeat superior*.

43. By reason of the foregoing, Plaintiff demands compensatory damages and punitive damages against all of the Defendants.

WHEREFORE, Plaintiff prays for relief as follows:

A. That the Court award compensatory damages to him and against the defendants jointly and severally, in an amount to be determined at trial;

B. That the Court award punitive damages to him, and against all defendants, in an amount, to be determined at trial, that will deter such conduct by defendants in the future;

C. For a trial by jury;

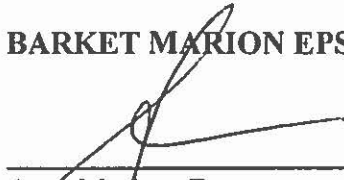
D. For a pre-judgment and post-judgment interest and recovery of his costs, including reasonable attorneys' fees pursuant to 42 U.S.C. § 1988 for all 42 U.S.C. § 1983 claims; and

E. For any and all other relief to which he may be entitled.

Dated: May 6, 2015
Garden City, New York

BARKET MARION EPSTEIN & KEARON

By: _____


Amy Marion, Esq.
666 Old County Road-Suite 900
Garden City, N.Y. 11530
(516) 745-0101

VERIFICATION

AMY MARION, attorney for the plaintiff in the within action, duly admitted to practice in the Courts of the State of New York, affirms the following statements to be true under the penalties of perjury, pursuant to Rule 2016 of the CPLR;

That she has read the foregoing Complaint and knows the contents thereof; that the same is true to her own knowledge except as to those matters therein stated to be alleged upon information and belief, and that as to those matters, she believes them to be true.

Affiant further states that the source of this information and the grounds of her belief are derived from the file maintained in the normal course of business of the attorneys for the plaintiff.

Affiant further states that the reason this affirmation is not made by the plaintiffs is that at the time this document was being prepared, the plaintiff were not within the County of Nassau York, which is the County where the attorneys for the plaintiff herein maintain their office.

Dated: May 6, 2015
Garden City, New York



Amy Marion, Esq.

Sworn to before me this
6 day of May, 2015



Notary Public

LENSKA RODRIGUEZ
NOTARY PUBLIC, State of New York
No. 01RO6147462
Qualified in Suffolk County 2018
Commission Expires June 5, _____